
Pilgram Federation Visit Report**Audit Date: 11/03/20****Report: Year 2 visit 1****DPE: Stuart Lee****School member: Mary Dolan**

1. Visit details

In addition to the audit walk, key GDPR documentation was reviewed and DPE best practice areas were discussed/demonstrated with the Mary. The best practice areas and checklists can be used to support with future visits.

The Federation are already at an advanced stage with their GDPR project and Mary continues to use GDPR as a driver for improvements to practice across the federation which is evident during the visits.

The Federation will now use the DPE online SAR and breach log (demonstrated during the visit) and continue to raise staff awareness with data privacy and data protection, for example: Mary will display the DPE best practice guides in each school.

Mary confirmed that staff are to complete bitesize training at the next inset and Mary is to develop work away from school guidance so it is Federation specific. Documentation has been updated since the last visit: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/working-out-of-school> DPE now also have bitesize work away from school training (Mary asked for this during the visit):

<https://kb.dataprotection.education/work-at-home-e-elearning/working-at-home-2>
<https://kb.dataprotection.education/courses-heading/stay-safe-online-ncsc>

The next visit focus will be on supporting the Federation and admin staff with the Record of Processing (RoP) tool.

2. Audit walk findings

Very good practice observed, and as above Mary continues to use GDPR as a driver to improve practice across the Federation. Visits were completed at individual schools. Main risks identified are detailed below:

Servers and backups:

- School to check with IT provider as the backup disks were laying on top of a server at one school. Federation to get IT provider to complete cyber essentials questionnaire (section 5)

Clear desks and in-trays

- Continue to be aware of what data is left in in-trays and on desks; 1 x speech and language report found within a pile of paper (Kelling)

List and displays:

- 1 x list found with full name, gender and DOB that was printed in September. Ascertained this was not needed. Reminder to staff (Wallsingham)

Cabinets and cupboards:

- Continue to review data in cupboards/cabinets; outdated assessment folders observed in one cupboard (Walsingham)

Student passwords and usernames on 1 sheet of paper shared openly:

- Previously identified as a risk. By walking through the process Mary is going to improve practice across the Federation by having individual slips for each student. This also improves awareness of risks for students and supports raising awareness with students.

3. Compliance actions that should now be completed

Initial documents:

- **Privacy Notice**
- **GDPR Policy**
- **Data Breach Procedure.**
- **SAR procedure**
- **Photo and Video consent**

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data breach procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news> **Federation told to wait as DPE will be providing a model publication scheme after Easter.**

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>